or revoke licenses provided under Section 11. Basically, they relate to violation of the terms of the license. Also, the Minister of Trade and Industry himself may, through ordering the Council to do so, suspend or revoke license.[11]

In terms of contents, the license under *Section 14* shall especially provide for liability of the licensee.[12] The option is left open for the Council here to provide for a cap to the compensation to be paid by the licensee with respect to such liability.[13]

Section 23 provides for the penalties to be imposed. Any unlicensed performance of an activity which required a license, or any failure to comply with the conditions of the pertinent license, may be punished by a maximum of ten years of prison or alternatively by a maximum fine of 1,000,000 Rand.[14] Lesser maximum penalties for lesser offenses are also provided. The applicable court, moreover, may order "any damage resulting from the offence [to] be repaired by the person...convicted, to the satisfaction of the Minister."[15] At least this provides an opportunity for the South African government to have recourse against the actual person causing the damage in case of international claims against South Africa for liability with respect to that damage.

In conclusion, especially in view of the wide range of activities (potentially) covered by the Act, the establishment of a licensing regime and the due attention explicitly paid to the international obligations of South Africa, it may be said that the Act provides a rather satisfactory way of further elaboration of international space law on the national level, especially vis-à-vis private entities. At the same time, the government is left with considerable leeway to support such private space activities through its discretion regarding the terms of licensing and liability obligations. It almost seems as if it is now just a matter of waiting before South Africa would become a full-fledged party to the Liability Convention.

Frans G. von der Dunk
Co-Director,
International Institute of Air and Space Law,
Leiden University

Case Note

On June 26, 1995, a U.S. District Court ordered NASA to award Eosat the exclusive contract to operate and market data from the government-owned Landsat 4 and 5 satellites. The contract allows Eosat to retain the right to operate and market imagery from the satellites until 10

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11 Sec. 13(7).
12 Sec. 14(1)(b).
13 *Cf.* Sec. 14(2)(a).
14 Sec. 23(1).
15 Sec. 23(6).